

reviewing the rates in terms of their reasonableness, the Court finds that a twenty-five percent (25%) downward adjustment is warranted (-\$23,268.63), given the inefficiencies. The Court finds that attorney's fees in the amount of \$69,805.89, plus costs in the amount of \$1,143.48, for a total award of \$70,949.37, is reasonable.

After reviewing the papers submitted by counsel, and considering the applicable statutory and decisional authorities, the Court finds that there is good cause to grant Defendant's Motion.

Ruling

Good cause therefore appearing, the Court **grants** Defendant's Motion for Attorney's Fees and Costs, as set forth herein.

1. Plaintiff shall pay Defendant's attorney's fees in the amount of \$69,805.89
2. Plaintiff shall reimburse Defendant's costs in the amount of \$1,143.48 pursuant to its memorandum of costs filed on June 16, 2025. No other costs and fees are awarded.
3. Payments are due within thirty (30) days from the date of this order, or pursuant to a payment plan negotiated by the Parties, and presented to this Court in the form of a stipulation and proposed order. Absent this stipulation and proposed order, payments are due in thirty days.
4. Defendant is ordered to prepare and e-file a conforming order, approved as to form by Plaintiff, no later than ten (10) days from the date of this hearing.

**4. 9:00 AM CASE NUMBER: C23-01810
CASE NAME: KEVIN HUMPHREY VS. JASVIR SINGH SHAHI
HEARING ON SUMMARY MOTION
FILED BY: DILLARD TRUCKING, INC.
*TENTATIVE RULING:***

This hearing continued, *sua sponte*, to December 17, 2025 at 9:00 a.m in Department 16.

**5. 9:00 AM CASE NUMBER: C23-02459
CASE NAME: KYLE GARDNER VS. MARIO MADRIGAL
*HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO DEFENDANT'S
RESPONSES TO REQUEST FOR ADMISSIONS, SET TWO AND CORRESPONDING FORM
INTERROGATORIES, SET TWO
FILED BY: GARDNER, KYLE R.
*TENTATIVE RULING:***

Summary

Plaintiff's Motion to Compel Further Responses to Request for Admissions, Set Two and Further Responses to Form Interrogatory No. 17.1, Set Two, is **granted** in part and **denied** in part as set forth herein.

Background

In this action, Plaintiff Kyle Gardner ("Plaintiff") alleges that he sustained personal injuries arising out

of a motor vehicle collision that occurred on October 13, 2021, in Contra Costa County. Plaintiff contends that a vehicle operated by Defendant Mario Valencia Madrigal (“Defendant”) struck the motorcycle he was riding at the intersection of James Donland Boulevard and South Royal Links Circle in the City of Pittsburg, California.

On August 20, 2024, Plaintiff served Requests for Admissions, together with Form Interrogatory No. 17.1, seeking that Defendant admit or deny the amounts paid for Plaintiff’s accident-related medical expenses and the necessity of the Kaiser treatment reflected in medical bills and records previously produced. Following meet-and-confer efforts, Plaintiff asserts that Defendant did not provide timely or complete responses and instead served deficient responses on May 27, 2025, precipitating the instant motion.

On August 8, 2025, Plaintiff filed and served a Motion to Compel Further Responses to Requests for Admission, Set Two, and the corresponding Form Interrogatories, Set Two. The motion is supported by a Notice, Separate Statement, the Declaration of Andrew Oberst, and a Proposed Order. Plaintiff maintains that he is entitled to unqualified admissions concerning the nature and extent of the Kaiser treatment he received, including the cost of that treatment, and to the identity of persons possessing information responsive to the Requests for Admission as sought in Interrogatory No. 17.1. Plaintiff further argues that Defendant’s assertion—that an independent medical examination is necessary to respond to Interrogatory No. 17.1—“ignores what facts are at issue herein as they relate to what a present-day physical examination of plaintiff could determine.”

On November 13, 2025, Defendant filed an opposition contending that the motion is premature and improperly seeks “to penalize Defendant for being unable to respond to complex medical questions before completing the necessary investigation.” Defendant maintains that the investigation necessary to respond to the interrogatories includes an Independent Medical Examination of Plaintiff by a defense neurologist, which has not yet been scheduled due to a dispute regarding the permissible scope of the examination.

Analyses

Scope of Discovery

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting, Inc.*, *supra*, 148 Cal.App.4th at 402.

On the other hand, the Court is empowered to limit the scope of discovery where the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.020(a).

Request for Admissions

The purpose for a request for admission under the Discovery Act is well established. . Requests for Admissions may be used to (1) establish the truth of specified facts, (2) admit a legal conclusion, (3) determine a party's opinion relating to a fact, (4) settle a matter in controversy, and (5) admit the genuineness of documents. C.C.P. §2033.010; Weil and Brown, Cal. Prac. Guide: Civil Procedure Before Trial (TRG 2025) ¶¶8:1288 - 8:1301.2. A fact that is admitted by a party under the procedure in CCP §§2033.010–2033.740 is eliminated as an issue. The fact cannot be contested by the admitting party at a later point in the case except following an order permitting amendment or withdrawal of the admission. In effect, an admission is a stipulation that binds the admitting party in that action. See *St. Mary v Superior Court* (2014) 223 CA4th 762, 775 (“Matters that are admitted or deemed admitted through RFA discovery devices are conclusively established in the litigation and are not subject to being contested through contradictory evidence”).

However, a party may present evidence at trial that is directly contrary to the party's previous admission if the admission was true at the time and the party later discovered evidence that refuted the admission. *Burch v Gombos* (2000) 82 CA4th 352, 355. In *Burch*, because the request for admission required the defendant to admit that it had no evidence at that point in time, the defendant was able to reply with an unqualified admission. Although CCP §2033.300(a) requires a noticed motion when a party seeks to amend or withdraw an admission, the party is under no duty to supplement prior Requests for Admissions if the party obtains new information that refutes the prior admission. *Burch, supra*, 82 CA4th at 360. Because the request for admission asked for the *defendant's knowledge at the time the question was posed, the response given by the defendant was true at the time and remained true at the time of trial.*

A request that a matter in controversy be admitted is usually made with little or no expectation that an admission will be made. Rather, its purpose is to set the stage for the cost-of-proof sanction that is a unique feature of CCP §2033.420 or to provide a predicate for an interrogatory requesting the evidence supporting the denial

The response to a request for admission must be “as complete and straightforward as the information reasonably available to the responding party permits.” CCP §2033.220(a). The section also imposes a duty of “reasonable inquiry.” CCP §2033.220(c). This means that the responding party must seek information beyond their personal knowledge and inquire of sources of information within their reach, custody, or control. At a minimum, the response should reflect all the information reasonably available to a party, including that in the possession of the party's attorney or designated expert (unless privileged). See *Chodos v Superior Court* (1963) 215 CA2d 318, 322.

The answer to a Request for Admission may be phrased as a denial of the entire request or of the part of the request that is untrue. See CCP §2033.220(b)(2). Like an admission, a denial must be as complete and straightforward as the information available to the responding party permits. CCP §2033.220(a). However, if the party knows that the fact that it is requested to admit is true, a denial should not be made. The requesting party may later recover the expense, including attorney fees, incurred in proving the denied fact (or the denied genuineness of a document) if the denial is later found by the court to have been unjustified. Counsel should be aware that the cost-of-proof sanction is not usually sought. Nevertheless, a court can award sanctions under CCP §2033.420 even after granting a summary judgment motion, if the court determines that the legal issues were “proved” as

part of the summary judgment motion. *Barnett v Penske Truck Leasing Co.* (2001) 90 CA4th 494, 498.

If the responding party gives lack of information or knowledge as a reason for failing to admit all or part of a request for admission, the party must state in the answer that “a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.” CCP §2033.220(c). A general objection that a party has not “completed its investigation of the facts” and that the responses were prepared “on the basis of information presently available to and located ... upon reasonable investigation” does not prevent a specific admission from being conclusively established against the answering party, unless the party moves to withdraw or amend the admission. *Joyce v Ford Motor Co.* (2011) 198 CA4th 1478, 1489

Interrogatories

The grounds set forth in Cal. Code of Civ. Proc. § 2030.300(a)(1)-(3) compel further answers to interrogatories where the answers are “incomplete or evasive,” or an “objection to an interrogatory is without merit or too general.” When a motion to compel has been filed, the burden is on responding party to justify any objections made. *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 255.

In response to Form Interrogatory 17.1, Defendant is required to disclose if, how, and why he will contest the legitimacy of simple paid medical insurance figures to support his affirmative defense by disclosing all facts, documents and any witnesses to support his denial. If Defendant so chooses to unreasonably deny/contest the paid figures, their reasonableness, and their reasonable necessity due to the incident, required to retain experts or present evidence to establish the requested admissions, Plaintiff is entitled to post-trial cost of proof sanctions. C.C.P. §2033.420

After considering the papers submitted by Counsel, an applying the relevant statutory and decisional authority set forth herein, the Court makes the following findings and orders:

Ruling

The Court rules as follows on Plaintiff’s Motion to Compel:

1. Request for Admissions Set Two:
 - (a) Nos. 25, 26, 33, 37, 41, 45, 49, 53, 57, 61, 65, 69, 73, 13 77, 81, 85, 91, 95, 99 (Receipt of Medical Services). **Denied.**
 - (b) Nos. 27, 28, 34, 38, 42, 46, 50, 54, 58, 62, 66, 70, 74, 78, 82, 86, 92, 96, 100 (Medical Necessity). **Denied.**
 - (c) Nos. 29, 30, 35, 39, 43, 47, 51, 55, 59, 63, 67, 71, 75, 23 79, 83, 87, 88, 89, 90, 93, 94, 97, 101 (Payment Amounts) **Denied.**
 - (d) Nos. Nos. 31, 32, 36, 40, 44, 48, 52, 56, 60, 64, 68, 72, 76, 80, 84, 98, 102 (Reasonableness of Costs) **Denied.**
2. Interrogatory No. 17.1
 - (a) Nos. 25-102: **Denied** in part and **Granted** in Part. With respect to further responses to subparts 17.1(a) and (b), the Motion to Compel further response is **denied**. The Court accepts Defendant’s responses that it does not have enough information to provide further response until it has conducted an Independent Medical Examination.

(b) Further response to subparts 17.1(c) and (d) is **granted**. Defendant's objections are overruled. Defendant is ordered, for each subpart, to identify each person with knowledge of the facts that form bases for Defendant's denial and is ordered to disclose their addresses and telephone numbers as required by this interrogatory. Similarly, Defendant is ordered, for each subpart, to identify each document and tangible thing that supports the bases for Defendant's denial and is ordered to state the name, address and telephone number of each person who has knowledge of these documents. A referral to correspondence between counsel is insufficient.

3. Time for Further Responses. Defendant is required to provide further responses to Form Interrogatory No. 17.1(c) and (d) for Nos. 25-102 are due no later than ten (10) days from the date of this order.
4. Sanctions. Sanctions are denied. The Court finds that Defendants acted with substantial justification in making objections and preparing the responses that were served on Plaintiff. Each party to bear their own attorney's fees and costs for this Motion.
5. Plaintiff's Counsel is ordered to prepare and e-file a conforming order, approved as to form, no later than ten (10) days from the date of this hearing. Counsel are ordered to meet and confer to comply with this order and to take necessary and proper steps to implement this Court's order. The Court reserves its authority to refer this and all further discovery motions to a Discovery Referee.

6. 9:00 AM CASE NUMBER: C24-03185

CASE NAME: TRINA WEST VS. CRESCENT PARK EAH, L.P.

*HEARING ON MOTION IN RE: LEAVE TO FILE A FIRST AMENDED COMPLAINT

FILED BY: WEST, TRINA

TENTATIVE RULING:

Summary

Plaintiff Trina West ("Plaintiff")'s Motion for Leave to File a First Amended Complaint for Damages and Injunctive Relief is **granted**. No appearance is required at the hearing on November 26, 2025.

Background

In this case, Plaintiff alleges a breach of contract and habitability arising out of her tenancy at 1172 Ellis St., Richmond, CA 94804. Defendant Crescent Park EAH, L.P. ("Defendant") owns, operates and leases this property to Plaintiff.

Plaintiff filed her Motion for Leave to File a First Amended Complaint on October 1, 2025. The Motion was accompanied by a Notice, Memorandum of Points and Authorities, Declaration of Michelle Endo, a Proposed First Amended Complaint, and Proof of Service. Plaintiff also lodged a proposed order.

Plaintiff seeks to amend her complaint to allege additional facts and claims against Defendant. Defendant did not file an opposition to this Motion.

Analysis

Standards Governing Leave to Amend

The Court has discretion to allow amendment of pleadings under Code of Civil Procedure section